



ARIZONA HOUSE OF REPRESENTATIVES FLOOR AMENDMENT EXPLANATION

57th Legislature, 2nd Regular Session

Majority Research Staff

HB 2793: annexation of territory; procedures

CARBONE FLOOR AMENDMENT

1. Requires municipalities to provide notice as prescribed in statute relating to the deletion of an annexed area from fire district territory if any part or all of the territory of a fire district is part of the territory that is proposed to be annexed.

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2/23/2026

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CARBONE FLOOR AMENDMENT
HOUSE OF REPRESENTATIVES AMENDMENTS TO H.B. 2793
(Reference to printed bill)

Amendment instruction key:

[GREEN UNDERLINING IN BRACKETS] indicates text added to statute or previously enacted session law.

[Green underlining in brackets] indicates text added to new session law or text restoring existing law.

~~[GREEN STRIKEOUT IN BRACKETS]~~ indicates new text removed from statute or previously enacted session law.

~~[Green strikeout in brackets]~~ indicates text removed from existing statute, previously enacted session law or new session law.

<<Green carets>> indicate a section added to the bill.

~~<<Green strikeout in carets>>~~ indicates a section removed from the bill.

1 The bill as proposed to be amended is reprinted as follows:

2 Section 1. Section 9-471, Arizona Revised Statutes, is amended to
3 read:

4 9-471. Annexation of territory; procedures; notice;
5 petitions; access to information; pre-annexation
6 agreements; restrictions

7 A. The following procedures are required to extend and increase the
8 corporate limits of a city or town by annexation:

9 1. A city or town shall file in the office of the county recorder
10 of the county in which the annexation is proposed a blank petition
11 required by paragraph 4 of this subsection setting forth a description and
12 an accurate map of all the exterior boundaries of the territory contiguous
13 to the city or town proposed to be annexed, except that a city or town
14 shall not file an annexation petition that includes any territory for
15 which an unsuccessful annexation was attempted by the same city or town
16 until at least forty-five days after completion of the unsuccessful
17 attempt. A property owner may waive the forty-five-day waiting period for
18 the owner's property that was part of the original unsuccessful
19 annexation. Notice and a copy of the filing shall be given to the clerk
20 of the board of supervisors and to the county assessor. The accurate map
21 shall include all county rights-of-way and roadways that are within or
22 contiguous to the exterior boundaries of the area of the proposed
23 annexation. If state land, other than state land used as state
24 rights-of-way or land held by the state by tax deed, is included in the
25 territory, written approval of the state land commissioner and the
26 selection board established by section 37-202 shall also be filed. The
27 description shall identify the entity, if any, that will be responsible
28 for maintaining the existing rights-of-way and roadways that are within or

1 contiguous to the exterior boundaries of the area of the proposed
2 annexation. For the purposes of this paragraph, "unsuccessful annexation"
3 means an annexation attempt that was withdrawn or that was not completed
4 pursuant to this section.

5 2. Signatures on petitions filed for annexation shall not be
6 obtained for a waiting period of thirty days after filing the blank
7 petition.

8 3. After filing the blank petition pursuant to paragraph 1 of this
9 subsection, the governing body of the city or town shall hold a public
10 hearing within the last ten days of the thirty-day waiting period to
11 discuss the annexation proposal. The public hearing shall be held in
12 accordance with title 38, chapter 3, article 3.1, except that,
13 notwithstanding section 38-431.02, subsections C and D, the following
14 notices of the public hearing to discuss the annexation proposal shall be
15 given at least six days before the hearing:

16 (a) Publication ~~at least~~ once in a newspaper of general
17 circulation, which is published or circulated in the city or town and the
18 territory proposed to be annexed, at least fifteen days before the end of
19 the waiting period. IF THE NEWSPAPER MAINTAINS AN ONLINE PUBLICATION
20 PLATFORM THAT IS AVAILABLE IN THE CITY OR TOWN WHERE THE TERRITORY
21 PROPOSED TO BE ANNEXED IS LOCATED, THE CITY OR TOWN MAY PUBLISH THE NOTICE
22 ELECTRONICALLY.

23 (b) Posting in at least three conspicuous public places in the
24 territory proposed to be annexed. IF THE TERRITORY PROPOSED TO BE ANNEXED
25 CONSISTS OF A SINGLE PARCEL AND THE PARCEL IS NOT MORE THAN ONE HUNDRED
26 SIXTY ACRES IN SIZE, THE CITY OR TOWN MAY POST A SINGLE NOTICE ON THE SITE
27 OF THE PARCEL THAT IS PROPOSED TO BE ANNEXED IN AN AREA THAT IS MOST
28 VISIBLE TO THE PUBLIC.

29 (c) Notice by first class mail sent to the chairperson of the board
30 of supervisors of the county in which the territory proposed to be annexed
31 is located.

32 (d) Notice by first class mail with an accurate map of the
33 territory proposed to be annexed sent to each owner of the real and
34 personal property as shown on the statement furnished pursuant to
35 subsection ~~G~~ H of this section that would be subject to taxation by the
36 city or town in the event of annexation in the territory proposed to be
37 annexed. For the purposes of this subdivision, "real and personal
38 property" includes mobile, modular and manufactured homes and trailers
39 only if the owner also owns the underlying real property.

40 4. Within one year after the last day of the thirty-day waiting
41 period, a petition in writing signed by the owners of one-half or more in
42 value of the real and personal property and more than one-half of the
43 persons owning real and personal property that would be subject to

1 taxation by the city or town in the event of annexation, as shown by the
2 last assessment of the property, may be circulated and filed in the office
3 of the county recorder. For the purposes of this paragraph, "real and
4 personal property" includes mobile, modular and manufactured homes and
5 trailers only if the owner also owns the underlying real property.

6 5. Alterations increasing or reducing the territory sought to be
7 annexed shall not be made after a petition has been signed by a property
8 owner.

9 6. The petitioner shall determine and submit a sworn affidavit
10 verifying that no part of the territory for which the filing is made is
11 already subject to an earlier filing for annexation. The county recorder
12 shall not accept a filing for annexation without the sworn affidavit.

13 7. THE CITY OR TOWN SHALL PROVIDE NOTICE AS PRESCRIBED IN SECTION
14 48-813 IF ANY PART OR ALL OF THE TERRITORY OF A FIRE DISTRICT IS PART OF
15 THE TERRITORY THAT IS PROPOSED TO BE ANNEXED.]

16 B. IF THE TERRITORY PROPOSED TO BE ANNEXED ENCOMPASSES THE REAL AND
17 PERSONAL PROPERTY OF THE PROPERTY OWNER WHO INITIATES THE ANNEXATION AND
18 THAT PROPERTY REPRESENTS ONE HUNDRED PERCENT OF THE REAL AND PERSONAL
19 PROPERTY THAT WOULD BE SUBJECT TO TAXATION BY THE CITY OR TOWN IN THE
20 EVENT OF ANNEXATION, BOTH OF THE FOLLOWING APPLY:

21 1. THE CITY OR TOWN MAY WAIVE THE REQUIREMENT FOR A THIRTY-DAY
22 WAITING PERIOD REQUIREMENT PURSUANT TO SUBSECTION A, PARAGRAPH 2 OF THIS
23 SECTION AND THE REQUIREMENT TO HOLD A PUBLIC HEARING PURSUANT TO
24 SUBSECTION A, PARAGRAPH 3 OF THIS SECTION. ON OBTAINING THE STATEMENT
25 THAT CONTAINS THE OWNERSHIP INFORMATION PURSUANT TO SUBSECTION H OF THIS
26 SECTION, THE CITY OR TOWN MAY FILE A SIGNED PETITION WITH THE COUNTY
27 RECORDER IN THE COUNTY WHERE THE TERRITORY PROPOSED TO BE ANNEXED IS
28 LOCATED NOT LATER THAN ONE YEAR AFTER THE CITY OR TOWN FILES FOR
29 ANNEXATION.

30 2. THE ANNEXATION SHALL BECOME FINAL AFTER THE GOVERNING BODY OF
31 THE CITY OR TOWN ADOPTS THE ANNEXATION ORDINANCE.

32 ~~B.~~ C. All information contained in the filings, the notices, the
33 petition, the tax and property rolls and other matters regarding a
34 proposed or final annexation shall be made available by the appropriate
35 official for public inspection during regular office hours.

36 ~~C.~~ D. Any city or town, the attorney general, the county attorney
37 or any other interested party within the territory PROPOSED to be annexed
38 may on verified petition move to question the validity of the annexation
39 for failure to comply with this section. The petition shall set forth the
40 manner in which it is alleged the annexation procedure was not in
41 compliance with this section and shall be filed within thirty days after
42 adoption of the ordinance annexing the territory by the governing body of
43 the city or town and not otherwise. The burden of proof shall be on the

1 petitioner to prove the material allegations of the verified petition. An
2 action shall not be brought to question the validity of an annexation
3 ordinance unless brought within the time and for the reasons provided in
4 this subsection. All hearings provided by this section and all appeals
5 therefrom shall be preferred and heard and determined in preference to all
6 other civil matters, except election actions. If more than one petition
7 questioning the validity of an annexation ordinance is filed, all such
8 petitions shall be consolidated for hearing. If two or more cities or
9 towns show the court that they have demonstrated an active interest in
10 annexing any or all of the area proposed for annexation, the court shall
11 consider any oral or written agreements or understandings between or among
12 the cities and towns in making its determination pursuant to this
13 subsection.

14 ~~D.~~ E. The annexation shall become final after the expiration of
15 thirty days after the adoption of the ordinance annexing the territory by
16 the city or town governing body, provided the annexation ordinance has
17 been finally adopted in accordance with procedures established by statute,
18 charter provisions or local ordinances, whichever is applicable, subject
19 to the review of the court to determine the validity of the annexation
20 ordinance if petitions in objection have been filed. After adoption of
21 the annexation ordinance, the clerk of the city or town shall provide a
22 copy of the adopted annexation ordinance to the clerk of the board of
23 supervisors of each county that has jurisdiction over the annexed area
24 within sixty days after the annexation becomes final.

25 ~~E.~~ F. ~~For the purpose of determining~~ TO DETERMINE the sufficiency
26 of the percentage of the value of property under this section, the values
27 of property shall be determined as follows:

28 1. In the case of property assessed by the county assessor, values
29 shall be the same as shown by the last assessment of the property.

30 2. In the case of property valued by the department of revenue,
31 values shall be appraised by the department in the manner provided by law
32 for municipal assessment purposes.

33 ~~F.~~ G. ~~For the purpose of determining~~ TO DETERMINE the sufficiency
34 of the percentage of persons owning property under this section, the
35 number of persons owning property shall be determined as follows:

36 1. In the case of property assessed by the county assessor, the
37 number of persons owning property shall be as shown on the last assessment
38 of the property.

39 2. In the case of property valued by the department of revenue, the
40 number of persons owning property shall be as shown on the last valuation
41 of the property.

1 3. If an undivided parcel of property is owned by multiple owners,
2 those owners are deemed one owner for the purposes of this section.

3 4. If a person owns multiple parcels of property, that owner is
4 deemed one owner for the purposes of this section.

5 ~~G.~~ H. The county assessor and the department of revenue,
6 respectively, shall furnish to the city or town proposing an annexation,
7 within thirty days after a request, a statement in writing showing the
8 owner, the address of each owner and the appraisal and assessment of all
9 such property.

10 ~~H.~~ I. Territory is not contiguous for the purposes of subsection
11 A, paragraph 1 of this section unless:

12 1. It adjoins the exterior boundary of the annexing city or town
13 for at least three hundred feet.

14 2. It is, at all points, at least two hundred feet in width,
15 excluding rights-of-way and roadways.

16 3. The distance from the existing boundary of the annexing city or
17 town where it adjoins the annexed territory to the furthest point of the
18 annexed territory from that boundary is not more than twice the maximum
19 width of the annexed territory.

20 ~~I.~~ J. A city or town shall not annex territory if, as a result of
21 that annexation, unincorporated territory is completely surrounded by the
22 annexing city or town or a combination of the annexing city or town and
23 other cities or towns, unless the county board of supervisors for the
24 county in which the territory is located makes a finding that the proposed
25 annexation will not adversely impact the levels of county services to the
26 remaining unincorporated territory.

27 ~~J.~~ K. Notwithstanding any provisions of this article to the
28 contrary, any town incorporated before 1950 that had a population of less
29 than two thousand persons by the 1970 census and that is bordered on at
30 least three sides by Indian lands may annex by ordinance territory owned
31 by ~~the~~ THIS state within the same county for a new townsite that is not
32 contiguous to the existing boundaries of the town.

33 ~~K.~~ L. Subsections ~~H.~~ I and ~~I.~~ J of this section do not apply to
34 territory that at the time of the annexation was already completely
35 surrounded by the same city or town or a combination of cities and towns.

36 ~~L.~~ M. Subsection ~~I.~~ J of this section does not apply to
37 annexations that were approved by the selection board established in
38 section 37-202 before August 25, 2020.

39 ~~M.~~ N. A city or town annexing an area shall adopt zoning
40 classifications that permit densities and uses not greater than those
41 permitted by the county immediately before annexation. Subsequent changes
42 in zoning of the annexed territory shall be made according to existing
43 procedures established by the city or town for the rezoning of land.

1 ~~H.~~ O. The annexation of territory within six miles of territory
2 included in a pending incorporation petition filed with the county
3 recorder pursuant to section 9-101.01, subsection D shall not cause an
4 urbanized area to exist pursuant to section 9-101.01 that did not exist
5 before the annexation.

6 ~~O.~~ P. As an alternative to the procedures established in this
7 section, a county right-of-way or roadway may be transferred to an
8 adjacent city or town by mutual consent of the governing bodies of the
9 county and city or town if the property transferred is adjacent to the
10 receiving city or town and if the city or town and county each approve the
11 proposed transfer as a published agenda item at a regular public meeting
12 of their governing bodies. A transfer of property made pursuant to this
13 subsection shall be treated by the receiving city or town as if the
14 transferred property was newly annexed territory.

15 ~~P.~~ Q. On or before the date the governing body adopts the
16 ordinance annexing territory, the governing body shall have approved a
17 plan, policy or procedure to provide the annexed territory with
18 appropriate levels of infrastructure and services to serve anticipated new
19 development within ten years after the date the annexation becomes final
20 pursuant to subsection ~~P.~~ E of this section.

21 ~~Q.~~ R. If a property owner prevails in any action to challenge the
22 annexation of the property owner's property, the court shall allow the
23 property owner reasonable attorney fees and costs relating to the action
24 from the annexing municipality.

25 ~~R.~~ S. A city or town may annex territory that is a county-owned
26 park or a park operated on public lands by a county as part of a
27 management agreement if otherwise agreed to by the board of supervisors.
28 If the board of supervisors does not agree to the annexation, the
29 county-owned park or park operated on public lands by a county as part of
30 a management agreement shall be excluded from the annexation area,
31 notwithstanding subsections ~~H.~~ I and ~~I.~~ J of this section. A county-owned
32 park or park operated on public lands by a county as part of a management
33 agreement that is excluded from the annexation area pursuant to this
34 subsection may subsequently be annexed with the permission of the board of
35 supervisors notwithstanding any other provision of this section. For the
36 purposes of this subsection, "public lands":

- 37 1. Has the same meaning prescribed in section 37-901.
38 2. Does not include lands owned by a flood control district.

39 ~~S.~~ T. Notwithstanding subsection ~~H.~~ I of this section, territory
40 is considered contiguous for the purposes of subsection A, paragraph 1 of
41 this section if all of the real property in the territory is owned by one
42 person, the city or town and the owner of the real property agree to the

1 annexation and the territory adjoins the exterior boundary of the annexing
2 city or town for at least three hundred feet.

3 ~~+~~ U. A city, town or developer may enter into a pre-annexation
4 agreement with a property owner in which the property owner agrees to
5 future annexation of an area that includes the property owner's property.
6 A property owner who has entered into a pre-annexation agreement is not
7 required to sign the petition pursuant to subsection A, paragraph 4 of
8 this section. Whether or not the property owner signs the petition, the
9 property and property owner are included for purposes of calculating the
10 one-half or more in value of the real and personal property and more than
11 one-half of the persons owning real and personal property that would be
12 subject to taxation by the city or town in the event of the annexation, as
13 required pursuant to subsection A, paragraph 4 of this section.

14 Enroll and engross to conform
15 Amend title to conform

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